Harris County District Court

Cause No. 2024-CV-0041

Samantha Fowler, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	November 22, 2024
Plaintiff's counsel:	Jennifer Williams, Conley & Stephenson Law Group

PARTIES

Plaintiff Smaantha Fowler is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. The Dfeendant is an automobile insurance company authorized to write policies in the State of Texas, which isseud a policy of automobile liability and uninsured/underinsured motorist coverage under which Plaintiff seeks benefits and damages.

FACTS

On November 18, 2023, Pliantiff was lawfully stopped in traffic at an intersection in League City, Texas, when the vehicle operated by the at-fault driver struck the rear of Plaintiff's vehicle. The impact was forceful enough to push Plaintiff's car forward and caused significant damage to the rear bumper, trunk and tail assembly. Plaintiff reported the collision to law enforcement and to Defendant, and Plaintiff submitted a claim under the applicable coverage. Plaintiff has cooperated with Defendant's investigation at all times. Defendant has not paid the amounts owed under the policy.

NEGLIGENCE

The at-fault driver owed a duty to keep a proper lookout, to control speed, and to maintain a safe following distance. That driver breached those duties by failing to stop in time and striking Plaintiff's stopped vehicle. Under Texas law, a rear-end collision with a stopped vehicle gives rise to a presumption of negligence on the part of the following driver, and no comparative fault is attributable to Plaintiff. Defendant, as insurer, is obligated under the policy and Texas law to pay sums its insured or the covered driver becomes legally obligated to pay, and Defendant's refusal to pay constitutes a breach of its contractual duties.

DAMAGES

As a direct result of the collision, Plaintiff suffered whiplash injuries to the neck and upper back, including pain, stiffness, reduced range of motion and headaches. Plaintiff has incurred medical expenses for examination, imaging and treatment, has lost time from work, and continues to experience pain and limitation in daily activities. Plaintiff also sustained property damage to the vehicle. Plaintiff seeks actual damages, prejudgment and postjudgment interest, court costs, and all other relief to which Plaintiff is entitled, in an amount of $233,000.00.